

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALURA MICHELLE GAMBINO,

Petitioner

VS.

MARK PETER GAMBINO,

Respondent

) Case Number: FDI-25-801672

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alura Michelle Gambino and Respondent Mark Peter Gambino.
- 2) On 7/14/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/1/01 and date of separation is 3/1/23 for a marriage of 22 years. On 7/28/25, Petitioner filed a Proof of Service of Summons indicating Respondent was personally served on 7/17/25.
- 3) On 7/2/26, Petitioner filed an amended Petition for Dissolution indicating the date of marriage is 9/1/01 and date of separation is 3/1/23 for a marriage of 22 years. On 7/2/26, Petitioner filed a Proof of Service by Mail indicating service was effectuated by mail on 7/2/26.
- 4) On 7/16/26, Petitioner filed an ex parte Request for Order seeking spousal support and child support.
- 5) On 7/16/26, the Court denied Petitioner's request for emergency relief pending hearing set for 9/1/26. The Court ordered Petitioner to personally serve Respondent with all documents filed with Request for Order (see FL-300).

- 6) There is no Proof of Service on file indicating Respondent was personally served with the 7/16/25 Request for Order.
- 7) Respondent did not file a Responsive Declaration.
- 8) Petitioner did not file an Income and Expense Declaration with the Request for Order seeking spousal support and child support.

B. Findings and Order

- 1) The hearing on Petitioner's 7/16/25 Request for Order is hereby **CONTINUED to 10/13/26 at 9 AM in Dept. 403** to (a) permit Petitioner file and serve an Income and Expense Declaration as required by California Rules of Court, rule 5.260; and (b) provide Petitioner additional time to effectuate proper service.
- 2) At least 16 Court days prior to the next hearing date, Petitioner shall serve on Respondent the (a) Request for Order, (b) current, completed Income and Expense Declaration (form FL-150); (c) Continuance Order contained herein, and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.
- 3) At least 9 Court days prior to the next hearing date, Respondent may file and serve a Responsive Declaration and shall file and serve an Income and Expense Declaration (form FL-150).
- 4) At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply Declaration.
- 5) The Court will prepare the Findings and Order After Hearing.